



Tax-free savings account



APPLICATION FOR TAX-FREE SAVINGS ACCOUNT

Reminder: Use the most up-to-date version of this application. Visit fidelity.ca for the latest available forms.

YOUR INVESTMENT PROFESSIONAL	Dealer company's name	Dealer code	Rep. code
	Investment professional's name	Phone # () -	

TYPE OF ACCOUNT	☐ New account
	Fidelity account no. _____ Dealer Cross Reference no. _____

HOLDER INFORMATION <i>All information is mandatory</i>		You must be a Canadian resident and 18 years of age or older to contribute to a TFSA.			
		☐ Mr. ☐ Dr. ☐ Miss	First name	Initial	Last Name
		☐ Mrs. ☐ Ms.			
Street address		Apt/Suite	Phone Number		Preferred Contact # ☐
Postal code		City	Province	Home: () -	
				Cell: () -	☐
Date of birth (dd/mm/yyyy)		Social insurance number	Email	☐ English ☐ French	

E-DELIVERY	Fidelity uses electronic delivery to provide you with your Confirmations, Statements, Fund Financial Reports & MRFP, Annual Regulatory Notices, and other documents. It is your responsibility to register for My Accounts at fidelity.ca/investorlogin, in order to access and retrieve these documents. You will also receive electronic notice of documents at the email you have provided to us, and as they become available, and you understand and agree that you must provide us with a valid and up to date email in order to receive such notifications. If you do not wish to receive documents via electronic delivery, or if you have any difficulty registering for My Accounts, please immediately contact us at 1 800 263-4077. You may also choose to receive tax slips/receipts by electronic delivery by checking the below box. If you do not check the box below, you will continue to receive tax slips/receipts by mail. ☐ I/we confirm that we choose to receive tax slips/receipt by electronic delivery and that by choosing this option, I will no longer receive tax documents by mail.
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SUCCESSOR HOLDER AND/OR BENEFICIARY(IES) INFORMATION <i>Optional</i>	For all provinces and territories except Quebec: The validity of a successor holder/beneficiary designation is subject to provincial/territorial succession legislation. For the Province of Quebec: Under the laws of Quebec, a designation of successor holder/beneficiary may be made in a will or other written document that meets the requirements of a testamentary disposition. The successor holder/beneficiary designation made on this application cannot be given effect and will be defaulted to the estate. 1. Designation of successor holder (for all provinces and territories, except Quebec) In the event of my death, I designate my spouse or common-law partner, by naming them below, to be the successor holder of the Plan. If I have designated both successor holder and beneficiary (under Designation of Beneficiary(ies) section below), and both are alive at my death, then the successor holder designation takes precedence. The successor holder may, after my death, revoke or change the beneficiary(ies).		
	<table><tr><td>Last Name</td><td>First Name</td><td>SIN</td></tr></table>	Last Name	First Name
Last Name	First Name	SIN	

2. Designation of beneficiary(ies) (for all provinces and territories, except Quebec)			
If I have designated my spouse as successor holder, the following beneficiary designation will be effective only if my successor holder predeceases me or is not my spouse or common-law partner on the date of my death. I designate the person(s) named below as the beneficiary(ies) under the Plan, provided this person(s) is living at the date of my death. If a beneficiary I have designated below dies before, then that beneficiary's percentage entitlement will be shared among any other beneficiary(ies) I have designated who survive me, in proportion to their percentage entitlement. If I do not designate any beneficiaries, payment will be made to my estate. I reserve the right to revoke this designation. I understand that I must deliver any change to my beneficiary designation to Fidelity in writing, in a form acceptable to Fidelity.			
Last Name	First Name	Relationship	Allocation %

Caution: Your successor holder/beneficiary designation will remain unchanged on our records until you make a change by notifying us in writing. You should reconsider your successor holder/beneficiary designation if there are changes in your personal circumstances, such as marriage or divorce.

INVESTMENT SELECTION

- Fund codes available at fidelity.ca/fundcodes
- In the event of a discrepancy between the code and the name, we will treat the code as correct and process accordingly.
- For more Fidelity Tax-Smart CashFlow options, use the Fidelity Tax-Smart CashFlow forms available at [Fidelity.ca](https://fidelity.ca) under Advisor resources > Forms.
- DSC series (including Low Load and Low Load 2 options) of Fidelity Funds cannot be purchased on and after June 1, 2022.

☐ Wire Order Purchase (provide wire order # below) ☐ Transfer from a non-Fidelity account (attach transfer form)

☐ Direct Purchase (attach cheque) ☐ Transfer from an existing Fidelity account _____

NOTE: For One-time PAC requests, use the SYSTEMATIC PURCHASES (PAC) section of this application.

Fund Code	Fund Name	Amount ☐ \$ ☐ %	Sales Charge (0%-5%)	Wire Order Number	Distributions*	
					Reinvest	Deposit
					☐	☐
					☐	☐
					☐	☐
					☐	☐
					☐	☐
TOTAL INVESTMENT AMOUNT						

* For TFSA accounts, you may choose to have distributions reinvested, directly deposited to your bank account. If you choose direct deposit, you will need to attach a personalized void cheque to the application form. Please note that for Fidelity Tax-Smart CashFlow series and/or a series of a fund that pays monthly

distributions at a fixed rate, the default distribution option will be cash unless otherwise indicated. Tax-Smart CashFlow series' year-end distributions are reinvested. If banking instructions are not provided, payments will be issued by cheque.

SYSTEMATIC EXCHANGES

- Fund code takes priority over fund name.
- Only available between the same load option.

* The last run date is the actual last systematic exchange date.

☐ I authorize Fidelity to exchange funds within my Fidelity account as follows:

FREQUENCY OPTIONS (choose one)

Last run date* _____

☐ Weekly ☐ Bi-Weekly ☐ Monthly ☐ Twice a Month ☐ Every 2 Months ☐ Quarterly ☐ Semi-annually ☐ Annually

Start Date (dd/mm/yyyy)	Second Run Date For twice a month only (dd/mm/yyyy)	From Fidelity Fund		Amount		To Fidelity Fund	
		Fund Code	Fund Name	\$	Units	Fund Code	Fund Name

SYSTEMATIC PURCHASES (PAC)

- If your PAC date does not fall on a business day, Fidelity will process the PAC on the next business day.
- Fund code takes priority over fund name.
- It may take up to 48 hours for funds to be withdrawn from your bank account from the date the PAC is scheduled to run.
- DSC series (including Low Load and Low Load 2 options) of Fidelity Funds cannot be purchased on and after June 1, 2022.

* The last run date is the last date funds will be withdrawn from your bank account.

** The Annual Increase will be applied to the 1st run date of each calendar year.

☐ I authorize Fidelity Investments to debit the bank account indicated on the attached void cheque for the amount(s) and in the frequencies indicated. If I have elected to increase the amount indicated by specifying a percentage in the column below entitled "Annual Increase (0.00 – 100%)", I authorize Fidelity Investments to increase said amount by the percentage specified unless I provide instructions to Fidelity Investments to cancel or amend the annual increase instructions in accordance with the notice requirements set out below. If I transfer my account to a different branch of the same institution, this authorization will still be valid. Failure to make the payment will not give rise to any liability for Fidelity Investments. I may change these instructions or cancel this plan at any time, provided Fidelity Investments receives at least 10 business days notice by phone or by mail. I have certain recourse rights if a debit does not comply with this agreement. For example,

I have the right to receive reimbursement for any debit that is not authorized or is not consistent with this pre-authorized debit agreement (PAD).

(To obtain more information on recourse rights and/or a sample of a cancellation form, or more information on your right to cancel a PAD Agreement, contact your financial institution or visit www.payments.ca.) By Canadian Payment Association definition, if this is for your own personal investment, your debit will be considered a Personal PAD. If this is for business purposes, it will be considered a Business PAD. **By signing this form, I hereby waive any pre-notification requirements as specified by section 15(a) and (b) of the Canadian Payments Association Rule H1 with regards to pre-authorized debits.** I confirm that all persons whose signatures are required to authorize transactions in the bank account, as per the attached void cheque, have signed this agreement below.

Bank Account Holder Signature _____ Joint Bank Account Holder Signature _____

FREQUENCY OPTIONS (choose one)

Last run date* _____

☐ Weekly ☐ Every 2 Weeks ☐ Monthly ☐ Twice a Month ☐ Every 2 Months ☐ Quarterly ☐ Semi-annually ☐ Annually

One Time PAC (check if applicable)	Start Date (dd/mm/yyyy)	Second Run Date For twice a month only (dd/mm/yyyy)	Fund Code	Fund Name	Amount (\$)	Annual Increase (0.00 – 100.00%)**	Sales Charge (0%-5%)
☐							
☐							
☐							
☐							

TOTAL DOLLAR AMOUNT \$ 0

SYSTEMATIC WITHDRAWALS (SWP)

• If your SWP date does not fall on a business day, Fidelity will process the SWP on the preceding business day.

• Fund code takes priority over fund name.

• See Fidelity EFT Policy in Regards to SWPs on Tips page.

* The last run date is the last date funds will be deposited to your bank account.

** The Annual Increase will be applied to the 1st run date of each calendar year.

☐ I authorize Fidelity to make regular withdrawals from my Fidelity account as shown below.

FREQUENCY OPTIONS (choose one)

☐ Weekly ☐ Every 2 Weeks ☐ Monthly ☐ Twice a Month ☐ Every 2 Months ☐ Quarterly ☐ Semi-annually ☐ Annually

Last run date* _____

Start Date (dd/mm/yyyy)	Second Run Date For twice a month only (dd/mm/yyyy)	Fund Code	Fund Name	Amount (\$) ☐ Gross ☐ Net	Annual Increase (0.00 - 100.00%)**	Attach a void cheque for the direct deposit of your payment to your bank account. Direct deposit may take up to 48 hours to post on your bank account.

TOTAL DOLLAR AMOUNT \$ 0

BANKING INFORMATION

For PAC, SWP, DWP payments

ATTACH YOUR BANKING INFORMATION TO THIS APPLICATION FORM.

Fidelity EFT Policy: To help protect our investors, Fidelity Investments requires one of the following:

- A copy of a personalized void cheque with client name and banking information pre-printed/embossed on the cheque. **Counter cheques will not be accepted.**
- A letter from a recognized Canadian Bank or Credit Union issued on an official bank form or letterhead, with client name and bank account details. Bank stamp and signature must be provided if indicated on the bank form or letterhead.

- Online Bank Form, with or without void cheque image, with client name and bank account details. Bank stamp and signature must be provided if indicated on the Online Bank Form.
- 10 business days are required before the start date to set up or change a PAC or SWP plan.

NOTE: Payments can only be made payable to the beneficial owner/client name(s) on the Fidelity account.

PRIVACY NOTICE AND YOUR CHOICES

By providing your personal information on this form, or by authorizing your Dealer, financial institution or other third party to provide your personal information, you consent to Fidelity using your personal information to: administer your account, provide you and/or your authorized Dealer with transaction confirmations, statements, tax receipts, or other documents, information or services as requested from time to time, process pre-authorized debit transactions; use your personal information on this form (including email) and combine such information with other demographic information about you, your investment profile, and your online and offline interactions with Fidelity, to keep you informed of products and services that may be of specific interest to you; and otherwise required or permitted by law.

Fidelity may disclose the Information to its employees, agents and third parties who are bound to maintain its confidentiality, including your Dealer, third party service providers, other financial institutions and any governmental authority, as necessary for the above purposes or

as required by law, including to comply with requests for information from regulatory bodies and for income tax reporting purposes.

If you provide personal information about another individual, you represent and warrant that you have obtained appropriate consent from that individual to disclose their personal information to Fidelity for the above purposes.

You may choose to unsubscribe from receiving marketing and promotional communications from us at any time by following the unsubscribe procedure included in the communications, or via our Privacy Centre, or by contacting us at FICCustService@fidelity.ca or 1 800 263-4077. You may also exercise other privacy rights under applicable laws, such as the right to access, correct or withdraw your consent to our use of your personal information. For detailed information about how we collect, use and disclose your personal information and your privacy rights, please access our Privacy Statement at fidelity.ca.

YOUR SIGNATURE

For all transactions

You acknowledge that you have received a copy of the current fund facts of the fund(s) selected and understand that these transactions are made under the terms and conditions therein. You understand that mutual funds are not insured under the Canada Deposit Insurance Corporation Act or la Régie de l'assurance-dépôts du Québec. You certify that the information provided by you on the Application is complete and true in all respects. You have read, understood and accept the terms of this Supplement, including with respect to E-Delivery. You request that the Application and all documentation relating to your Account or the Program be provided to you in English. Vous demandez que la demande ainsi que toute la documentation afférente à votre compte ou au régime en anglais.

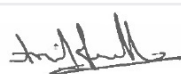
FOR QUEBEC RESIDENTS ONLY / RÉSERVÉ AUX RÉSIDENTS DU QUÉBEC

By signing below, I acknowledge having received and examined the terms of this agreement in French and it is my express wish that this agreement be drawn up in English. I agree not to dispute the validity of this agreement on the basis that it is drawn up exclusively in English. En apposant ma signature ci-dessous, je reconnais avoir

reçu et examiné les conditions de cet accord en français, et c'est ma volonté expresse que cet accord soit rédigé en anglais. Je conviens de ne pas contester la validité de cet accord au motif qu'il est rédigé exclusivement en anglais.

TO: Computershare Trust Company of Canada (The "Trustee") – I request Computershare Trust Company of Canada to act as Trustee of my Fidelity Investments Tax Free Savings Account (the "Plan") and to file an election with the Minister of National Revenue to register my qualifying arrangement under section 146.2 of the Income Tax Act (Canada). I acknowledge and agree to be bound by the terms and conditions set out in the Declaration of Trust set forth on the reverse side hereof, as amended from time to time. I acknowledge that I am solely responsible for determining the amount of contributions to the Plan. I understand that I am responsible for notifying the Trustee when I become a non-resident for Canadian tax purposes. I acknowledge that I am solely responsible and liable for certain tax consequences arising in connection with the Plan being non-compliant with the Income Tax Act provisions.

Accepted by Fidelity Investments Canada ULC, as agent for Computershare Trust Company of Canada, Trustee.

Date (dd/mm/yyyy)	Your Signature/ Holder's Signature	Authorized Signature
/ /	X	X 

Visit us online at fidelity.ca
or call Fidelity Client Services at 1 800 263-4077
or fax us at 1 800 387-8092

Fidelity Investments Canada ULC
483 Bay Street, Suite 300
Toronto, Ontario M5G 2N7

Tips for completing this form

Please print all information clearly.

Complete the *Holder information* section completely and carefully.

The application cannot be processed without it.

Attach all required documents to Fidelity's copy, including cheques.

When completing any investment selection

- Copy the fund code carefully from *fidelity.ca*
- Abbreviate the fund name, eliminating the words "Fidelity" and "Fund." For example, to choose the Fidelity Canadian Growth Company Fund, simply print "Canadian Growth Company" or "Cdn Growth Co." We use this name to verify the code you have written. If there is a discrepancy between the fund code and the fund name indicated, we will assume the fund code is correct.
- Check one box to show whether you are using dollar amounts or percentages.
- Indicate how you would like your distributions – reinvested or deposited directly into your bank account. If you choose direct deposit, you will need to attach a void cheque to the form.

Fidelity EFT Policy in regards to SWPs: To help protect our investors, Fidelity Investments requires **one** of the following:

- A copy of a personalized void cheque with client name and banking information pre-printed/embossed on the cheque. *Counter cheques will not be accepted.*
- A letter from a recognized Canadian Bank or Credit Union issued on an official bank form or letterhead, with client name and bank account details. Bank stamp and signature must be provided if indicated on the bank form or letterhead.
- An Online Bank Form, with or without void cheque image, with client name and bank account details. Bank stamp and signature must be provided if indicated on the Online Bank Form.

Note: SWP payments can only be made payable to the beneficial owner/client names on the Fidelity account.

PAC plan application

To apply for a PAC plan, please attach a void personalized cheque.

The Holder needs to sign the form

The Holder's signature in the section called *Your Signature* applies to *all* information provided on the form.

Send or fax the signed form with the initial payment to Fidelity at

483 Bay Street, Suite 300
Toronto ON M5G 2N7

Fax us at 1 800 387-8092

The Holder gets the second copy, and the investment professional gets the last copy.

**FIDELITY INVESTMENTS
TAX-FREE SAVINGS ACCOUNT
DECLARATION OF TRUST**

We, Computershare Trust Company of Canada, a trust company incorporated under the laws of Canada and having an office in the City of Toronto in the Province of Ontario, hereby declare that we accept the office of trustee for you, the accountholder named on the application form accompanying this declaration (the "**Application**") under the Fidelity Investments Tax-Free Savings Account (the "**Account**") on the following terms and conditions. You acknowledge that we have retained Fidelity Investments Canada ULC (the "**Agent**") as our agent to perform on our behalf certain of our duties and responsibilities under this declaration.

1. **COMPLIANCE:** The Account will at all times comply with all relevant provisions of the Act and any applicable provincial or territorial legislation with respect to TFSA's. You will be bound by the terms and conditions imposed on the Account by all applicable legislation.
2. **REGISTRATION AND MINIMUM AGE:** We will submit the Account for registration in accordance with the Act. At the time of opening the Account, you represent that you have attained at least 18 years of age. We will maintain the account for your exclusive benefit and in your name.
3. **DEALER:** In this declaration, a "**Dealer**" means the person or entity acting (or representing that it acts) as or on behalf of your investment advisor, broker or dealer in connection with the Account. You acknowledge that a Dealer is your agent and not our agent. We are entitled to accept and act on any notice, authorization or other communication that we believe in good faith to be given by you or Dealer on your behalf. Any reference in this declaration to your instructions or requests includes instructions or requests from your Dealer on your behalf. We are under no obligation to verify that a Dealer is properly authorized to act as your agent or is otherwise authorized to act on your behalf.
4. **CONTRIBUTIONS:** Only you may make contributions to the Account. At our sole discretion, we may accept or reject all or part of a contribution from any source permitted by the Act.
5. **INVESTMENTS:** We will invest contributions to your Account in the investments selected by you at the then current offering price next determined following the receipt of the contribution. In making your investment selection, you may select securities of mutual funds managed by the Agent or other investments acceptable to the Agent in its sole discretion. In making investments for your Account, we will not be limited to investments authorized by legislation governing the investment of property held in trust. Cash distributions received by us in respect of investments held in your Account will be re-invested in additional investments of the same type. In the absence of satisfactory investment instructions, we may invest cash in units of a money market fund managed by the Agent. We will hold the assets of the Account in trust, and will custody such assets through the Agent or custodians appointed by the Agent. Only we and you shall have rights under the Account relating to the amount and timing of distributions and investing of contributions.
6. **YOUR RESPONSIBILITIES:** You acknowledge and assume responsibility for the following:
 - (a) assessing the appropriateness of any investment, selecting investments for your Account, obtaining appropriate advice, or authorizing a Dealer to any of these things for you;
 - (b) ensuring that contributions to your Account do not exceed the maximum contribution limits permitted under the Act and that you do not make contributions while you are a non-resident of Canada; and
 - (c) ensuring that your Account's contributions and investments comply with the rules under the Act or any other applicable legislation, including that any security held in your Account is a qualified investment for the Account under the Act and is not a "prohibited investment" for the Account under the Act.We will not be responsible for any tax payable in respect of non-qualified investments, excess contributions or payments from your Account, or for loss resulting from the sale or other disposition of securities of your Account.
7. **NON-QUALIFIED INVESTMENTS AND PROHIBITED INVESTMENTS:** If the Account becomes liable for tax, interest, or penalties under the Act or similar provincial legislation, you authorize us to redeem sufficient assets of your Account to pay the liability and we will not be liable for any resulting loss. We will exercise the care, diligence and skill of a reasonably prudent person to minimize the possibility that the Account holds a non-qualified investment. Other than as set out in this declaration, we will not be liable for ascertaining whether any investment made on your direction is or remains a qualified investment for TFSA's under the Act. Subject to Section 22, we will not be liable for any tax payable in respect of any non-qualified investment or prohibited investment directed by you or made or held in the trust established hereunder. We will not otherwise be liable for the making, retention or sale of any investment or reinvestment as herein provided or for any loss or diminution of the assets comprising the Account.
8. **WITHDRAWALS:** Following receipt of satisfactory instructions from you (or your legal representative) or your Dealer on your behalf, we will pay distributions to you from your Account for any purpose, including refunds made in order to reduce the amount of tax otherwise payable by you as a result of excess contributions made contrary to the Act. We will not be responsible for determining the amount of any such refund. If the value of your Account is less than \$500, we may make a payment to you from your Account equal to the value of your Account. We may, in our sole discretion, sell any of the assets in the Account in order to make the foregoing payments and we will not be responsible for any resulting loss.
9. **TRANSFERS:** We will accept transfers to the Account from any sources permitted by the Act, including a transfer to the Account from another TFSA held by you or from a TFSA of your spouse or former spouse where the transfer relates to a division of property arising from a breakdown of the relationship in accordance with the Act. You may direct us to transfer all or part of the assets of your Account to the issuer of another TFSA held by you. Upon receipt of satisfactory written directions from you or your Dealer and subject to the conditions imposed by this declaration, the Act, and applicable provincial legislation, we will transfer the assets of the Account requested to be transferred, together with all the necessary information for the continuance of the Account, to the issuer of the recipient Account. You or your Dealer may instruct us to sell or transfer specific securities to effect the transfer. If you or your Dealer fail to provide us with satisfactory instructions, we may sell or transfer the securities we deem appropriate, in our sole discretion, to effect the transfer. If we receive instructions to transfer some of the assets of your Account, we may request instructions to transfer all of the assets of your Account and we may delay the transfer until we have received the instructions.
10. **RELATIONSHIP BREAKDOWN AND PAYMENTS INTO COURT AND TO THIRD PARTIES:** To the extent and in the manner permitted by applicable law, we will make a payment or payments out of your Account to effect a division of property, provided such payment is made pursuant to decree, order, or judgment of a competent tribunal or under a written separation agreement in the settlement of rights arising out of or on the breakdown of your marriage or other conjugal relationship.

If there is a dispute about:

 - (a) the validity of enforceability of any legal demand or claim against the assets of the Account; or
 - (b) the authority of a person or personal representative to apply for and accept receipt of the proceeds payable under the Account on your death,

we and the Agent are entitled to either apply to a court for directions or pay the disputed amounts into court and, in either case, fully recover any legal costs that either one incurs in this regard as expenses from the account. Where required by law, we and the Agent are entitled to make payments out of your Account to third parties without your prior authorization.

**FIDELITY INVESTMENTS
TAX-FREE SAVINGS ACCOUNT
DECLARATION OF TRUST**

11. **SUCCESSOR HOLDER AND BENEFICIARY DESIGNATION:** If you are domiciled in a jurisdiction that by law permits you to validly designate a beneficiary other than by will, you may designate: (i) your spouse as successor holder of your Account; or (ii) one or more beneficiaries to receive the assets of your Account in the event of your death. You must make, amend, or revoke the designation by way of written notice in a form acceptable to us and delivered to us. Any designation, amendment, or revocation will be valid only from the day following its receipt by us.
12. **PAYMENTS UPON YOUR DEATH:** Upon receipt of satisfactory evidence of your death, we will continue to hold the assets of your Account for your spouse provided he or she is the successor holder of your Account. If your spouse becomes the successor holder of your Account, he or she will be deemed to be the holder of your Account with the same rights as if he or she had been the original holder and all references to "you" in this declaration will be deemed to refer to him or her. If your spouse is not the successor holder, we will hold the assets of your Account for payment in a lump sum to your designated beneficiary. If you have not designated a beneficiary or if the designated beneficiary predeceases you, the payment will be made to your legal representatives or as required by law. The payment will be made subject to the deduction of all proper charges, including tax required to be withheld, after we receive the releases and other documents that we require in our sole discretion.
13. **PROHIBITION:** No advantage that is conditional on the existence of the Account may be extended to you or to a person not dealing at arm's length with you, other than those advantages permitted under the Act and under any applicable provincial legislation. We reserve the right to prohibit any transaction, investment, payment or transfer that is or may be prohibited or penalized under the Act.
14. **SECURITY FOR A LOAN:** If you use your interest in the Account as security for a loan or other indebtedness, then you will be responsible for ensuring that the terms and conditions of the loan or other indebtedness are terms and conditions that persons dealing at arm's length with each other would have entered into, and it can be reasonably concluded that none of the main purpose for that use is to enable a person, other than you, or a partnership to benefit from the exemption for tax of any amount under the Account.
15. **LOANS:** We are prohibited from borrowing money or other property for the purposes of the Account.
16. **PROOF OF AGE AND SOCIAL INSURANCE NUMBER:** The statement of your age and social insurance number on the Application is deemed to be a certification thereof and an undertaking by you to provide evidence or proof thereof if requested by us.
17. **YOUR ACCOUNT:** We will maintain an account for your exclusive benefit and in your name which records, where applicable, with appropriate dates, contributions to the Account, the number and cost of the investments in the Account, earnings and expenses of the Account for the preceding year, withdrawals and transfers from the Account, and the balance of the Account. We will send you a statement of your account at least once a year.
18. **AMENDMENTS:** From time to time, we may in our sole discretion amend this declaration with the concurrence of the Canada Revenue Agency and, as required, provincial tax authorities, provided that an amendment to this declaration does not disqualify the Account as a TFSA. Any amendment to this declaration that is necessary to ensure compliance with any legislation will be effective without further action or notice to you. In any other case, we will provide you with at least 30 days' written notice of every amendment to this declaration.
19. **NOTICE:** We will provide notice by pre-paid regular mail, electronic mail or other form of electronic transmission addressed to you at the address indicated on the Application or such other address as you or your Dealer may provide to us from time to time. Notice we give you will be deemed to have been made on the day the notice is sent or transmitted. Any notice you give to us or the Agent must be in writing in a form satisfactory to us or the Agent, as applicable. We or the Agent may, in our sole discretion, accept notice by means of electronic transmission. We may for any reason refuse to act on any notice, request or other communication from you or your Dealer and will not be liable for any resulting loss. Notice you or your Dealer gives to us will be deemed to have been made on the day of actual receipt of the notice.
20. **OUR RESPONSIBILITY AND DELEGATION OF DUTIES:** We are ultimately responsible for administering the Account in accordance with the terms of this declaration and the provisions of the Act. We are entitled to exercise, in our sole discretion, the rights, powers, and privileges that otherwise could be exercised by a beneficial owner of the securities of the Account. We may employ or engage accountants, brokers, lawyers, and others and may rely on their advice and services. Without detracting in any way from our responsibility, we may appoint one or more agents, including but not limited to the Agent, to perform any of our obligations under this declaration. We will not be liable for the acts or omissions of any of its advisors or agents. We will not be liable for the acts or omissions of a Dealer or any of your agents, advisors or service providers. Upon transferring assets from the Account or making a payment from the Account, we will be discharged from all further duties and liabilities under this declaration with respect to the assets transferred or paid out of the Account.
21. **FEES AND EXPENSES:** Unless otherwise prohibited by the Act, we are entitled to charge your Account fees for out-of-the-ordinary services requested by you or a Dealer in connection with your Account and to reimbursement for all taxes, penalties and interest imposed on us and for all other costs and expenses incurred by us in connection with your Account, or as described in the prospectus for the mutual fund(s) managed by the Agent held in your Account. All amounts so payable will be charged against and deducted from the assets in your Account, unless otherwise prohibited by the Act or you make other arrangements with us. We may, in our sole discretion, sell any of the assets in the Account in order to pay same and we will not be responsible for any resulting loss.
22. **TAXES IMPOSED ON YOU OR YOUR ACCOUNT:** We are not responsible for taxes, interest and penalties imposed on you or the Account, except for taxes, interest and penalties, if any, imposed on us by the Act that are not reimbursable by the Account under the Act. If your Account becomes liable for tax, interest or penalties under the Act or provincial legislation, we may, in our sole discretion, sell any investment of your Account to pay the liability. We will not be liable for any resulting loss.
23. **INDEMNITY:** None of the us, our officers, employees or agents will be liable for any loss suffered or for any taxes, interest or penalties imposed under the Act as a result of holding or dealing with the assets of your Account in accordance with instructions that we believe in good faith to have been given by you or your Dealer or dealing with the assets of your Account in accordance with the provisions of this declaration. You, your personal representatives and each beneficiary under your Account will at all times indemnify and save harmless us and our agents from all taxes, assessments, expense, liability, claims and demands arising out of the purchase, sale or retention of assets of your Account, payments on your death to any designated beneficiary, or anything done in connection with your Account, other than as the result of our fraud, dishonesty, bad faith, willful misconduct, or gross negligence.
24. **SUCCESSOR TRUSTEE:** We may resign and be discharged from all duties and liabilities under this declaration by giving written notice to the Agent. The Agent is initially nominated to appoint a company as successor trustee (the "Successor Trustee"). If a Successor Trustee cannot be found within a reasonable period, we and/or the Agent may apply to a court of competent jurisdiction for the appointment of a Successor Trustee, acceptable to the Agent. Upon acceptance of the office of trustee of your Account, the Successor Trustee will be trustee of your Account as if it had been the original declarant of your Account and your Account continues in full force and effect with the Successor Trustee. Any trust company resulting from a merger, amalgamation or continuation to which we are party, or succeeding to substantially all of our TFSA trusteeship business (whether by sale of such business or otherwise), will, if authorized, become the Successor Trustee of the Account without further act or formality. At the time of the appointment or succession of a Successor Trustee, we will be relieved of all duties and liabilities under this declaration.

**FIDELITY INVESTMENTS
TAX-FREE SAVINGS ACCOUNT
DECLARATION OF TRUST**

25. **DEFINITIONS:** In this declaration:
- (a) **Act** means the *Income Tax Act* (Canada);
 - (b) **Spouse** means a spouse or common-law partner as defined in the Act or legally married persons; and
 - (c) **Successor** holder means "survivor" as that term is defined in subsection 146.2(1) of the Act, being your spouse immediately before your death.
 - (d) **You** means "holder" as defined in subsection 146.2(1) of the Act.
26. **APPLICABLE LAWS:** This declaration will be governed, construed and enforced in accordance with the laws of Ontario and Canada.
27. **ELECTRONIC SIGNATURES:** You hereby authorize and direct the Agent and us to rely on your electronic signature on the Application, this declaration and all ancillary documents and all such electronic signatures, however provided to the Agent and us, will be deemed to be reliable for the purpose of identifying you and will be deemed to be reliable for the purpose of the document signed.
28. **HEIRS, EXECUTORS AND ASSIGNS:** The terms of this declaration will be binding on your heirs, executors, administrators and assigns and on the Agent's and our respective successors and assigns.
29. **SPECIMEN ACCOUNT:** This declaration conforms with Specimen Plan TFSA 574-1723.

Effective April 1, 2018